

communicate and has also failed to pay.

Disposition

The court grants Counsel's request to be relieved.

Counsel for Defendant shall file the Order.

7. 9:00 AM CASE NUMBER: L25-03269

CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES

***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff attached a proof of service.

Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

The court makes the following findings:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to prepare the Order.